

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 18, 2026
8:30 a.m.

5. JOHNATHAN ROBERT MILTON V. KIMBERLY LESLEY NOBELLA 25FL0722

This matter is before the court on the Request for Order (RFO) filed by the Petitioner on February 03, 2026, to modify child custody and visitation. Because the parties attended CCRC within six months before the instant RFO was filed, the court did not issue a new CCRC referral. (El Dorado Super. Ct., Local Ct. R. 8.10.01.)

Proof of service filed March 02, 2026, shows the RFO was served upon the Respondent via mail on February 05, 2026.

Also on March 02, 2026, the Petitioner filed a letter from his counsellor at Vista Rise Collective dated February 09, 2026. The court notes, however, there is no proof of service for said letter.

On March 13, 2026, the Respondent filed a Responsive Declaration, a copy of which was served upon the Petitioner via mail that same day. The proof of service indicates that the Respondent, herself, performed the mail service. Generally, service must be completed by a third party. Nonetheless, the court considers the Respondent's declaration, although exhibits referenced by the Respondent were not attached to the declaration or separately filed. The court finds that it is in the best interests of the parties' children to expand the Petitioner's visitation but not to include overnight visits, as requested by the Petitioner. The court grants visitation for the Petitioner each Wednesday from 5:00 p.m. to 8:00 p.m., as well as the first, second, and fourth Saturdays and Sundays of each month from 10:00 a.m. to 6:00 p.m.

Respondent is directed to prepare a new Restraining Order After Hearing to reflect the new visitation schedule.

TENTATIVE RULING #5: THE COURT GRANTS THE RFO IN PART. THE COURT GRANTS VISITATION FOR THE PETITIONER EACH WEDNESDAY FROM 5:00 P.M. TO 8:00 P.M., AS WELL AS THE FIRST, SECOND, AND FOURTH SATURDAYS AND SUNDAYS OF EACH MONTH FROM 10:00 A.M. TO 6:00 P.M. RESPONDENT IS DIRECTED TO PREPARE AND SUBMIT FOR THE COURT'S SIGNATURE A NEW RESTRAINING ORDER AFTER HEARING (ROAH) TO REFLECT THE NEW VISITATION SCHEDULE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

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6. MICHELLE BETH MCGINNIS V. MICHAEL MCGINNIS

SFL20210030

This matter is before the court for a five-year dismissal hearing pursuant to Code of Civil Procedure section 583.310, which provides, “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on March 02, 2021.

On July 08, 2021, the Petitioner filed a request for entry of default against the Respondent. However, it does not appear that the court granted or denied said request. The court notes that proof of service of summons on the Respondent was filed on April 13, 2021. Thus, it would appear appropriate to grant the request for default.

To date, there is no proof of service in the court’s file for Petitioner’s Preliminary Declaration of Disclosure. There is also no proposed judgment.

**TENTATIVE RULING #6: APPEARANCES ARE REQUIRED AT 8:30 A.M.,
WEDNESDAY, MARCH 18, 2026, IN DEPARTMENT 12.**